

ASSIGNMENT REPORT

Cybersecurity Law & Tools Research

**Assignment
1**

IT Act 2000 & DPDP Act 2023 — India

**Assignment
2**

Kali Linux — Overview, Purpose & Features

ASSIGNMENT 1

Research on IT Act 2000 and Digital Personal Data Protection Act, 2023 — India

Information Technology Act, 2000

India's Foundational Cyber Law & Digital Framework

Electronic transactions • Digital signatures • Cybercrime provisions • Intermediary guidelines

1. Information Technology Act, 2000 (IT Act 2000) — India

Purpose and Scope

The Information Technology Act, 2000 is an Act of the Indian Parliament enacted to provide **legal recognition to electronic transactions and digital signatures**, facilitate e-commerce and digital records in India, and address cybercrimes and electronic evidence.

Key Features

Feature	Details
Legal Recognition	E-documents, digital signatures, and e-filings hold the same legal validity as paper-based equivalents under Indian law.
Cybercrime Provisions	Defined offences including hacking, unauthorized access, and data damage, with corresponding penalties and punishments.
2008 Amendment	Widened cybercrime penalties and scope; supplemented by IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021.
Section 43A (SPDI)	Organisations handling Sensitive Personal Data or Information must maintain 'reasonable security practices' — limited privacy protection.

Function Today

The IT Act remains key for **cybercrime law and electronic transactions** but does not offer a standalone, robust data privacy protection regime — a significant gap that the DPDP Act 2023 was specifically enacted to fill.

Digital Personal Data Protection Act, 2023

India's Comprehensive Privacy & Data Protection Framework

Individual rights • Data Protection Board • Consent framework • Penalties up to Rs. 250 crore

2. Digital Personal Data Protection Act, 2023 (DPDP Act 2023) — India

Purpose and Background

The **Digital Personal Data Protection Act, 2023** establishes a comprehensive legal framework for personal data protection in India. It was enacted to replace previous limited protections under the IT Act and associated Rules, bringing India in line with global privacy standards.

Core Objectives

- Protect digital personal data — defined as data by which an individual may be identified — whether collected digitally or digitized later.
- Balance individual privacy rights with the lawful needs of organisations processing data.

Key Components

Component	Details
Applicability & Scope	Applies to digital personal data processed in India and by foreign entities targeting Indian residents. Excludes personal/domestic use and freely shared public data.
Roles Defined	Data Principal (the individual), Data Fiduciary (determines purpose & means of processing), Data Processor (processes on behalf of fiduciary).
Individual Rights	Right to access, correct, and erase data plus grievance redressal. Unique provision: nominate someone to exercise rights on one's behalf, including after death.
Consent & Legal Basis	Processing generally requires free, informed, specific, and unambiguous consent. Exemptions exist for legal obligations, public interest, and investigations.
Compliance Duties	Data minimisation, purpose limitation, security safeguards, and breach reporting obligations for fiduciaries. Special verifiable parental consent required for children's data.
Enforcement	Data Protection Board of India with full investigatory and adjudicatory powers. Penalties up to Rs. 250 crore per violation. 2025 Rules operationalise key provisions.

IT Act 2000 vs DPDP Act 2023

Aspect	IT Act 2000	DPDP Act 2023
Primary Focus	Electronic commerce & cybercrime	Comprehensive data privacy
Privacy Framework	Limited — Sec 43A & SPDI Rules only	Robust — individual rights & duties
Individual Rights	Not specifically addressed	Access, correction, erasure, grievance

Enforcement	Courts & Adjudicating Officers	Data Protection Board of India
Max Penalty	Up to Rs. 5 crore	Up to Rs. 250 crore